

Ceylinco Life Insurance Limited, Ceylinco Life Tower, 106, Havelock Road, Colombo 5. Co. Reg. No. PB5183 Tel: (011) 2 461 461 E-mail: service@ceylife.lk Web: www.ceylincolife.com

**CODE NUMBER: 226223**

This Agreement is made on this 31 day of August by and between CEYLINCO LIFE INSURANCE LIMITED (Registered No. PB5183) having its registered office at No. 106, Havelock Road, Colombo 05 (hereinafter called the "Company") and (National Identity Card No 200213214325) of REWRTWETWET RWETEWTWETWEYRE, of WD02.

# AGENT AGREEMENT DOCUMENT

**1. Agreement:**

**1.1.** The Company hereby contracts with Mr./Mrs./Ms. REWRTWETWET RWETEWTWETWEYRE as a/an Agency Supervisor - MC, and allocates Code No. 226223. The Term Agency Supervisor referred to in this contract bears the same meaning as an Insurance Agent as defined in the Regulation of Insurance Industry Act No. 43 of 2000 as amended and the regulations framed thereunder (hereinafter called "Insurance Agent").

**1.2.** The Insurance Agent hereby agrees to solicit and procure insurance business for the Company in the nature of business relating to the commencement, continuance, renewal or revival of policies of life insurance.

**2. In furtherance of the business interests of the Company as well as that of the Insurance Agent, the Insurance Agent shall:**

**2.1.** In furtherance of business policy and strategy, work and procure business in the territory allocated to him/her from time to time and if the agent covers business outside the territory the Company reserves the right to re-allocate such policies.

**2.2.** In the event of the Insurance Agent failing to achieve targets set by the Company for a continuous period of two (02) months and/or the targets set for the year by the Company which will be reviewed monthly, the Company reserves the right to terminate this contract with immediate effect.

**2.3.** Attend all Training Courses arranged by the Company from time to time when required to do so by the Company, in order to familiarise himself/herself with inter-alia, the financial, business and marketing policy and/or strategy on a continuing basis, in order to facilitate his/her work as an Insurance Agent.

**2.4.** Forthwith forward to the Company all proposals and applications procured by the Independent Insurance Agent in such a manner and in accordance with such guidelines as given by the Company from time to time to Insurance Agents.

**2.5.** Forthwith remit all sums of money collected by the Insurance Agent from Customers in the same form on the first day of visiting office after such collection and in any event not later than three business days (03) from date of collection, whichever is earlier.

**2.6.** Sell, canvas or procure solely such business offered and provided by the Company and shall strictly follow and use only such sales methods and procedures which have been formulated by the Company in order to harmonise with its business policy and/or strategy.

**2.7.** An Insurance Agent must conduct himself/herself in such a manner that befits an Insurance Agent who solicits and procures insurance business on its behalf and preserves the good image of the Company at all times.

**2.8.** Maintain the persistency rate stipulated by the Company at any given time, for Insurance Agents.

**2.9.** Issue either a Temporary Receipt without any alteration or omission thereon with the Insurance Agent's full signature, date, month, year, policy number, amount in words and figures, Insurance Agent's code number, name and address of the customer, from the receipt book issued by the Company each time money is collected from a policyholder or issue an SMS receipt.

**2.10.** Make an entry at the nearest Police Station and inform the Head of the Branch immediately if a Temporary Receipt book and/or a Company issued digital device/asset is lost/stolen.

**2.11.** Agent is advised to be familiar with all practices and procedures relating to insurance business adopted by the Company from time to time.

**2.12.** Deal with strict confidentiality, of any information (including but not limited to private, confidential, sensitive, personal, business) disclosed to the Insurance Agent by the Company or by the Customers/prospective Customers/former Customers/third party information relating to unsuccessful/successful sales canvassed in relation to Ceylinco Life Insurance Limited's business, while his/her (Agent's) contract is in force or not.

**No such information could be used, discussed, disclosed or exchanged with any other party under any circumstances without the consent and prior approval of Ceylinco Life Insurance Limited. The Company reserves its right to take appropriate action at any time against you/such persons who act in breach of the above term. This clause shall survive the termination/expiration of this contract.**

**3. In furtherance and/or in protection of the business interests of the Company as well as that of the Agent, the Agent shall not:**

**3.1.** In accordance with the IRCSL Act, directly engage himself/herself in canvassing any type of insurance business on behalf of another insurer or broker.

**3.2.** Print, circulate or advertise any matters pertaining to the insurance business engaged in by the Company, without obtaining prior permission from the Company in writing.

**3.3.** Pay, grant or offer to pay or grant as an inducement to any person, any rebate or discount of whatsoever nature save and except as specified by the Company.

**3.4.** Enter into or commit any act or deed, carried outside the scope of business/authority which may directly or indirectly bind the Company and shall not interfere with any business canvassed by another Insurance Agent, save and except with the prior written approval of the Company.

**3.5.** Vary, alter or modify any of the terms and conditions pertaining to the rights, duties and obligation arising under and in terms of this Agreement and those procedures and guidelines formulated by the Company pertaining to the solicitation and/or inter-alia of insurance business thereof.

**3.6.** Issue a Temporary Receipt or SMS receipt (subject to prevailing practices and procedures of the Company), without collecting money from the customer.

**3.7.** Make any alteration in a Temporary Receipt or SMS receipt.

**3.8.** Make any statements, illustrations, representations, correspondence or otherwise promising features, benefits, returns which are beyond the limits, benefits and rates guaranteed by the Company (either in a hard or soft copy format, in any medium including social media, either by using distinctive marks such as Trademarks, Brand names, Logos, Chimes etc. of the Company, or otherwise). On such event he/she will be responsible to the above and appropriate action will be taken against him/her once established, that someone has been misled by such statements, illustrations, representations, correspondence or by any other means.

**3.9.** Carry on canvassing insurance business in a manner likely to be detrimental to the interests of the policyholders of the Company or to the development of the insurance industry or the national interest.

**3.10.** Contravene regulatory and legislative requirements of the country (including but not limited to laws on prevention of money laundering and terrorist financing, anti-corruption and bribery, personal data protection, etc.).

**4. In furtherance of the business interests of the Company as well as that of the Insurance Agent, the Company:**

**4.1.** Pay the Insurance Agent any commissions if and when due to him, in consideration for his soliciting or procuring insurance business for the Company in the manner set out in the schedule in this Agreement.

**4.2.** Reserve the right to vary or alter the schedule of commission rates and conditions and upon such variation/alteration the new rate, conditions shall apply forthwith.

**4.3.** At all times direct, advise, assist and do all acts and deeds necessary to facilitate and promote the successful and effective performance by the Insurance Agent and the attainment of the objectives of this Agreement.

**4.4.** Advertise, promote and market the products and business carried out by the Company.

**4.5.** Always have the right to demand from and receive all documents, papers, records and any other material belonging to the Company that may be in the possession of the Insurance Agent.

**4.6.** In view of Clause 3.4 above, inter-alia, have the right to set-off any debt, liability or obligation, purportedly created by the Insurance Agent, against any money that may be due to the Insurance Agent out of any commission due to him in consideration for his/her soliciting and/or procuring insurance business for the Company. (This clause shall survive, even in the event of this Agreement being terminated/repudiated).

**4.7.** Determine any claims made by the Insurance Agent pertaining to the commission due to him/her consideration, for his/her soliciting and/or procuring insurance business for the Company on its individual merits and the decision of the Company in respect thereof, shall be final and conclusive.

**5. The Agreement shall be terminated:**

**5.1.** By mutual consent of the parties.

**5.2.** By either party giving 15 days' notice in writing of its intention to terminate this Agreement to the other party.

**5.3.** By the Company in the event of:

(a) The LIMRA persistency of the Agent falling below 50% in the first (01) year of the Contract.

(b) Breach of any conditions or terms arising from and under this Agreement, by the Insurance Agent.

(c) The Insurance Agent being found to be physically or mentally unfit to discharge and/or perform the duties and/or obligations arising from and under this contract.

(d) The Insurance Agent being, for any reason, found to be unsuitable in the opinion of the Company, to discharge the duties and obligations arising from and under this Agreement.

(e) The death or insolvency of the Insurance Agent.

(f) The Insurance Agent being involved in any fraud undermining the business or good name of the Company in any manner.

(g) The Insurance Agent being convicted of a criminal offence.

(h) If in the opinion of the Company, his/her conduct is unbecoming of an Insurance Agent.

(i) If in the opinion of the Company, the Insurance Agent acts in a manner prejudicial to Company interests or to the interest of any of the customers or associates of the Company.

(j) Violation of any applicable insurance law/s, regulation/s and any other laws/regulations of the country (including but not limited to laws on money laundering and terrorist financing, anti-corruption and bribery, personal data protection, etc.).

(k) Breach of the terms and conditions stipulated in the Independent Insurance Agents Code of Conduct.

(l) In all or any of the above, the decision of the Company shall be final and conclusive.

**6. In the event of terminating this Agreement:**

**6.1.** All commissions in consideration for soliciting or procuring insurance business for the Company due to the Insurance Agent, shall cease from the date of termination.

**6.2.** The Agent shall not be entitled to any form of compensation or payment whatsoever in the event of termination of this contract of Agency Agreement.

**7. It is further expressly agreed between the parties that:**

**7.1.** This agreement shall have the effect of abrogating, cancelling and annulling any previous or existing contracts that may hereto have existed between the Company and Insurance Agent.

**7.2.** It is agreed by and between the parties hereto that the Insurance Agent shall at all times function exclusively as an independent contractor and nothing herein contained shall under any circumstances be constructed to create a contractual relationship of employer and employee between the Insurance Agent and the Company.

**7.3.** It is further expressly admitted and agreed by the Insurance Agent that the management of the Company has explained and made known to the Insurance Agent the terms herein contained, the mode of payment, termination of contract and the effect thereof and the Insurance Agent having consented to the same hereby accepts the terms and conditions hereof.

**7.4.** The Jurisdiction related to this Contract/Agreement and other related documents such as guarantors' declaration etc. shall be the courts of Colombo.

**7.5.** Independent Insurance Agents Code of Conduct and Agents Privacy Notice will be part and parcel of this Agreement.

I hereby agree and understand that I am in fact a Life Insurance Agent as defined by Regulation of the Insurance Industry Act No. 43 of 2000, as amended and the regulation framed thereunder. I further certify I am not already registered as an Insurance Agent with any other insurer or broker.

I further agree and acknowledge that I have been given a copy of the Independent Insurance Agents Code of Conduct (sanctioned and issued as a guideline by the regulator, Insurance Regulatory Commission of Sri Lanka), in my preferred language, and that I have read and understood its contents.

I hereby give my consent to Ceylinco Life Insurance Limited to recover any dues to the Company from my Group Annuity Policy and any other amount lying to the credit/payable to me from the Company. This includes Commission payable and other payables.

**IN WITNESS WHERE OF** the Company has executed this Agreement and Insurance Agent, having read and understood/explained the terms and conditions of this Agreement has hereto set his/her hands on this 31 day of August.

## SIGNATURES

Agent Signature
Agent's Name: REWRTWETWET RWETEWTWETWEYRE
Code No.: 226223

CEYLINCO LIFE INSURANCE LIMITED
SENIOR ASSISTANT GENERAL MANAGER — AGENCY ADMINISTRATION

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|---|---|
| 1. Name:<br>.....<br>Address:<br>.....<br>NIC No.:<br>.....<br>Signature:<br>..... | 2. Name:<br>.....<br>Address:<br>.....<br>NIC No.:<br>.....<br>Signature:<br>..... |

# SCHEDULE OF COMMISSION RATES

| Years | Term 14 and below | Term 15 and above | Short Term Endowment | Single Premiums | CRA Policies |
|---|---|---|---|---|---|
| 1 | 20% | 30% | 0.5% | 2.5% | 5% |
| 2 | 11% | 14% | 0.5% | - | 5% |
| 3 | 7% | 10% | 0.5% | - | 5% |
| 4 | 7% | 7.5% | 0.5% | - | 5% |
| 5 | 3.5% | 3.5% | 0.5% | - | 5% |
| 6 | 3.5% | 3.5% | 0.5% | - | 5% |
| 7-10 | 3.5% | 3.5% | - | - | 5% |

Ceylinco Life is licensed by the Insurance Regulatory Commission of Sri Lanka (IRCSL).